

Ram Naresh v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 10 May 2023 · 2023:AHC:100932-DB · Writ C No. 15835 of 2023 · **Disposed; fresh order after hearing under the Supply Code**

HEADNOTE

On the statement that a recovery citation for electricity dues stood withdrawn and that the bill would be revised after hearing, the writ was disposed of with liberty to pass a fresh order after due notice and opportunity of hearing, strictly in accordance with the procedure under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Ram Naresh invoked the writ jurisdiction of the Allahabad High Court against a recovery citation dated 17 December 2022 issued by respondent No. 3 for electricity dues. When the petition was heard, counsel for respondent No. 4 stated that the impugned recovery had been withdrawn. He further stated that the respondents would revise the bill after giving the petitioner an opportunity of hearing.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005

fresh order after withdrawal of a recovery citation

HOLDING

Where the licensee states that the impugned recovery citation for electricity dues has been withdrawn and that the bill will be revised after hearing, the writ is disposed of with liberty to pass a fresh order after due notice and opportunity of hearing, strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 2-3

FLAG no clause number cited; the order refers only to the procedure prescribed under the Code

PRINCIPLE TAGS

fresh-order-after-hearing-strictly-under-supply-code Once the recovery citation was withdrawn, the Court left the respondents at liberty to pass a fresh order only after notice and hearing and only by the procedure in the U.P. Electricity Supply Code, 2005. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY AND QUANTUM OF THE ELECTRICITY DUES

The recovery citation was withdrawn. The Court did not decide the bill and left any fresh order to the respondents under the Supply Code after hearing. ¶ 2-3